

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201805796	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/23/2018 12:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/23/2019	Precinct: 28		
Date/Time CV Reported Tue, 07/17/2018 4:11 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 07/17/2018 4:11 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Keyana Kendall	17328	943432	028 PCT
2. SGT Roberto Coppola	00903	925116	028 PCT
3. LT Senta Caleb	00000	934563	028 PCT
4. POM Yeraldy Bonifacio	15500	952482	028 PCT
5. POM Frank Giarro	09850	950491	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Millicent Sempermartinez	26196	946232	028 PCT
2. POM Ahmed Aly	24874	963848	028 PCT
3. POM Joseph Carrasco	20350	938171	028 PCT
4. POF Maria Sneed	09687	928279	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Keyana Kendall	Abuse: Police Officer Keyana Kendall threatened to arrest § 87(2)(b)	A . Exonerated
B . LT Senta Caleb	Abuse: Lieutenant Senta Caleb entered § 87(2)(b), in Manhattan.	B . Exonerated
C . POM Frank Giarro	Discourtesy: Police Officer Frank Giarro spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . LT Senta Caleb	Abuse: Lieutenant Senta Caleb forcibly removed § 87(2)(b) to the hospital.	D . Exonerated
E . POM Frank Giarro	Force: Police Officer Frank Giarro tightly handcuffed § 87(2)(b)	E . Unsubstantiated
F . LT Senta Caleb	Force: Lieutenant Senta Caleb used physical force against § 87(2)(b)	F . Unfounded
G . POM Frank Giarro	Force: Police Officer Frank Giarro used physical force against § 87(2)(b)	G . Unfounded
H . POM Keyana Kendall	Force: Police Officer Keyana Kendall restricted § 87(2)(b)'s breathing.	H . Unfounded

Officer(s)	Allegation	Investigator Recommendation
I . POM Keyana Kendall	Abuse: Police Officer Keyana Kendall searched § 87(2)(b)	I . Substantiated
J . SGT Roberto Coppola	Abuse: Sergeant Roberto Coppola threatened to arrest § 87(2)(b)	J . Unsubstantiated
K . SGT Roberto Coppola	Discourtesy: Sergeant Roberto Coppola spoke discourteously to § 87(2)(b)	K . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 17, 2018, § 87(2)(b) filed this complaint with the CCRB online.

On March 23, 2018, at approximately 12:30 a.m., at § 87(2)(b) in Manhattan, Police Officer Keyana Kendall of the 28th Precinct threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority, exonerated**). Lieutenant Senta Caleb of the 28th Precinct entered § 87(2)(b) in Manhattan (**Allegation B: Abuse of Authority, exonerated**). Police Officer Frank Giarro of the 28th Precinct spoke to discourteously to § 87(2)(b) (**Allegation C: Discourtesy, unsubstantiated**). Lt. Caleb forcibly removed § 87(2)(b) to the hospital (**Allegation D: Abuse of Authority, exonerated**).

PO Giarro tightly handcuffed § 87(2)(b) (**Allegation E: Force, unsubstantiated**). Lt. Caleb and PO Giarro used physical force against § 87(2)(b) (**Allegations F and G: Force, unfounded**). PO Kendall restricted § 87(2)(b)'s breathing (**Allegation H: Force, unfounded**). PO Kendall searched § 87(2)(b) (**Allegation I: Abuse of Authority, substantiated**).

On March 23, 2018, at approximately 8 a.m., Sergeant Roberto Coppola of the 28th Precinct threatened to arrest § 87(2)(b) (**Allegation J: Abuse of Authority, unsubstantiated**) and spoke discourteously to her (**Allegation K: Discourtesy, unsubstantiated**).

§ 87(4-b), § 87(2)(g)

§ 87(2)(b) and her ex-boyfriend, § 87(2)(b) were arrested as a result of this incident.

There is no known video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Keyana Kendall threatened to arrest

§ 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Senta Caleb entered
§ 87(2)(b), in Manhattan.

§ 87(2)(g)

The investigation established the following facts:

On March 23, 2018, at approximately 1 a.m., § 87(2)(b) went to her ex-boyfriend's, § 87(2)(b)'s, apartment located at § 87(2)(b) in Manhattan. § 87(2)(b) did not live at the apartment. § 87(2)(b) was intoxicated, which caused a dispute between § 87(2)(b) and § 87(2)(b). § 87(2)(b) called 911 and § 87(2)(b) exited the apartment. § 87(2)(b) stayed inside the apartment and locked the door.

When PO Kendall and PO Maria Sneed of the 28th Precinct arrived, § 87(2)(b) refused to open the door, as she did not believe PO Kendall and PO Sneed were in fact police officers. Additional officers, including Lt. Caleb, PO Giarro, and PO Bonifacio arrived on scene. Eventually, § 87(2)(b) opened the door and the officers entered the apartment with EMS.

Once inside, § 87(2)(b) was handcuffed and forcibly removed to § 87(2)(b).
§ 87(2)(g)

According to § 87(2)(b) (BR 04), she moved in with § 87(2)(b) five to six months prior to the incident, but she was not listed on the lease and does not receive any mail to the apartment. § 87(2)(b) does not regularly stay at § 87(2)(b)'s apartment.

On March 23, 2018, § 87(2)(b) physically assaulted § 87(2)(b) punching her several times in her stomach, ripping her bellybutton, and causing her to bleed. After § 87(2)(b) § 87(2)(b) called 911 and § 87(2)(b) exited the apartment, § 87(2)(b) heard loud banging on the door. When she looked through the peephole, she saw PO Kendall and § 87(2)(b) outside. PO Kendall said, “Ma’am you need to open the door or you will get arrested.” § 87(2)(b) was scared of § 87(2)(b) and did not believe PO Kendall was in fact a police officer. § 87(2)(b) called 911 a second time to verify if PO Kendall was a police officer. After approximately 20 minutes, the 911 operator verified that PO Kendall was a police officer.

§ 87(2)(b) opened the door and saw approximately nine uniformed police officers, as well as EMTs. The officers and EMTs entered the apartment and stood in the living room area. Officers asked § 87(2)(b) if she lived in the apartment, but she could not provide any proof that she lived there.

In his telephone statement, § 87(2)(b) (BR 05) said he received a call from § 87(2)(b) § 87(2)(b) at approximately 9:30 p.m. § 87(2)(b) told § 87(2)(b) she was at Harlem Tavern Bar on 116th Street and could not drive home, and asked if she could stay overnight. § 87(2)(b) agreed.

When § 87(2)(b) arrived at § 87(2)(b)’s apartment, she continued to drink red wine. § 87(2)(b) threw glasses and broke bottles. § 87(2)(b) took § 87(2)(b)’s phone and called 911 to report that § 87(2)(b) assaulted her, which § 87(2)(b) denied. § 87(2)(b) took the phone from § 87(2)(b) and said he did not assault § 87(2)(b) but that she was drunk and had locked herself in the bedroom. The 911 operator told § 87(2)(b) she would send officers to the location.

§ 87(2)(b) decided he should leave the apartment, but could not find his keys and wallet. § 87(2)(b) left the apartment door open as he exited. When PO Kendall and PO Sneed arrived, § 87(2)(b) told them what happened and said he wanted § 87(2)(b) out of the apartment because she did not live there. When the officers and § 87(2)(b) got to § 87(2)(b)’s apartment door, the door was locked. § 87(2)(b) did not have a key.

The officers knocked on the door and asked § 87(2)(b) to open it. § 87(2)(b) refused and said she did not believe the officers were the police. § 87(2)(b) went to his super, § 87(2)(b) for a spare key. When § 87(2)(b) tried to open the door with the key, § 87(2)(b) held the lock with her hands, preventing the key from turning. PO Kendall told § 87(2)(b) that because § 87(2)(b) was barricaded inside, they would have to call ESU to break down the door. § 87(2)(b) did not mind, as there were no other options to get § 87(2)(b) out of the apartment.

Additional officers arrived, including Lt. Caleb and PO Bonifacio. PO Bonifacio called § 87(2)(b) and was able to distract her away from the door. When § 87(2)(b) went away from the door, Lt. Caleb opened the door and the officers, as well as EMTs, entered the apartment. PO Kendall asked § 87(2)(b) to remain in the hallway. § 87(2)(b) could not see what occurred inside the apartment, but did hear § 87(2)(b) yelling, though he could not hear any specific statements.

PO Kendall (BR 06) said that he and PO Sneed arrived at the location and met with § 87(2)(b) § 87(2)(b) outside of the building. § 87(2)(b) informed them that § 87(2)(b) was drunk inside his apartment and locked him out. When PO Kendall, PO Sneed, and § 87(2)(b) got to the apartment door, § 87(2)(b) refused to open the door. PO Kendall told § 87(2)(b) that if she did not open the door, ESU would come and “break the door open and arrest” her. PO Kendall denied saying, “Ma’am, you need to open the door or you will be arrested.” § 87(2)(b)

§ 87(2)(b) could have been arrested for criminal trespass because she did not live at the apartment. § 87(2)(b) still refused to open the door and PO Kendall called for a supervisor and ESU.

Meanwhile, § 87(2)(b) called his super to the apartment, and the super provided a spare key and verified that § 87(2)(b) lived at the apartment. PO Kendall tried to use the spare key to unlock the door, but § 87(2)(b) was holding the lock, preventing it from turning. At an unknown point, Lt. Caleb and PO Bonifacio arrived on scene. PO Kendall relayed to Lt. Caleb that § 87(2)(b) was “barricaded” inside the apartment and refused to open the door. Lt. Caleb told PO Kendall to cancel ESU.

PO Bonifacio contacted the call back number associated with the 911 call, reached § 87(2)(b) and convinced her to open the door. All the officers entered the apartment. § 87(2)(b) was intoxicated, but PO Kendall could not describe any physical symptoms of intoxication § 87(2)(b) exhibited. § 87(2)(b) said that § 87(2)(b) assaulted her, but § 87(2)(b) did not have any physical injuries. PO Kendall repeatedly asked § 87(2)(b) to show him where she was injured, but she did not reply. Lt. Caleb then asked PO Kendall to leave the apartment and he did so, but he did not know why he was asked to leave. PO Kendall stood outside the apartment with § 87(2)(b) and could not see anything that occurred inside the apartment.

PO Sneed (BR 07) did not remember the details of this incident.

Lt. Caleb (BR 08) received a call from an officer, whom she could not identify, regarding a burglary in progress. The officer explained that § 87(2)(b) got into a fight with § 87(2)(b) and § 87(2)(b) locked him outside of the apartment and called 911. § 87(2)(b) refused to let the officers inside the apartment.

When Lt. Caleb arrived, § 87(2)(b) told Lt. Caleb that § 87(2)(b) had his keys and identification. § 87(2)(b) had a single key to one of the locks on his door, but there were two locks, and therefore § 87(2)(b) could not open the door with the key. Lt. Caleb spoke to § 87(2)(b) through the door and identified herself as a police officer. § 87(2)(b) refused to open the door and Lt. Caleb contacted ESU. Lt. Caleb did not hear an officer threaten to arrest § 87(2)(b).

When § 87(2)(b) opened the door, Lt. Caleb and the other officers entered the apartment, while § 87(2)(b) remained in the hallway. § 87(2)(b) said § 87(2)(b) “abuses” her, but she did not elaborate as to how and Lt. Caleb did not see any physical injuries on § 87(2)(b). Lt. Caleb smelled alcohol on § 87(2)(b)’s breath and noticed foam around § 87(2)(b)’s mouth, which made Lt. Caleb believe § 87(2)(b) was intoxicated. Lt. Caleb tried to ask § 87(2)(b) what happened between her and § 87(2)(b) but § 87(2)(b) could not provide a coherent explanation. § 87(2)(b) said she lived at the apartment, but she could not provide documentation proving so.

While Lt. Caleb was trying to figure out what was going on, PO Kendall was further agitating § 87(2)(b) by making inflammatory statements, such as telling § 87(2)(b) that she “stole § 87(2)(b)’s] belongings.” Lt. Caleb told PO Kendall to leave the apartment and he did so.

PO Bonifacio (BR 09) arrived on scene and contacted the communication center, requesting that they contact § 87(2)(b) and tell her to open the door. Approximately two minutes later, § 87(2)(b) opened the door. PO Bonifacio did not enter the apartment and did not see or hear anything that was going on inside the apartment.

In the communications CD (BR 11-12), § 87(2)(b) cries throughout her 911 call. § 87(2)(b) states that she shares the apartment “part-time” with § 87(2)(b) who recently assaulted her, and that she does not believe the people at her door are police officers. § 87(2)(b) says in the background, “What right do you have to arrest me? This is my place, too.”

A person is guilty of criminal trespass in the second degree when he or she knowingly enters or remains unlawfully in a dwelling. New York State Penal Law 140.15 (BR 13).

Consent is voluntary when it is “a true act of the will, an unequivocal product of an essentially free and unconstrained choice.” People v. Gonzalez 39 N.Y.2d 122 (1976) (BR 14).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
As such, it is recommended that **Allegation A** be closed as **exonerated**.

§ 87(2)(g)
it is recommended that **Allegation B** be closed as **exonerated**.

Allegation (C) Discourtesy: Police Officer Frank Giarro spoke discourteously to § 87(2)(b)

According to § 87(2)(b) (BR 04), after the officers and EMTs entered the apartment, they told § 87(2)(b) she had to go to the hospital. PO Giarro called § 87(2)(b) “crazy” and said she needed medical and psychiatric treatment when he was inside the apartment.

§ 87(2)(b) (BR 05) remained outside the apartment and could neither see nor hear anything other than § 87(2)(b) yelling. § 87(2)(b) did not recall any particular statements § 87(2)(b) made.

EMT § 87(2)(b) (BR 25) and EMT § 87(2)(b) (BR 26), the responding EMTs, provided telephone statements. Neither EMT § 87(2)(b) nor EMT § 87(2)(b) had a recollection of this incident.

PO Giarro (BR 10) responded to the scene to back PO Kendall and PO Sneed. Approximately 15 minutes after PO Giarro arrived, the door was opened, but he did not remember how. PO Giarro entered the apartment with the other officers. § 87(2)(b) was screaming that she lived at the location, but she could not produce any proof of residence. § 87(2)(b)

§ 87(2)(b) appeared to have vomited and seemed to be intoxicated. PO Giarro denied calling § 87(2)(b) “crazy” and saying that she needed psychiatric and medical treatment.

PO Kendall (BR 06) and Lt. Caleb (BR 08) denied hearing an officer call § 87(2)(b) “crazy” and say that she needed psychiatric and medical treatment. PO Bonifacio (BR 09) remained outside and did not hear anything that went on inside the apartment.

§ 87(2)(g) As such, it is recommended that Allegation C be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: Lieutenant Senta Caleb forcibly removed § 87(2)(b) to the hospital.

As mentioned above, it is undisputed that § 87(2)(b) was forcibly removed from § 87(2)(b) s apartment and taken to § 87(2)(b) § 87(2)(b) § 87(2)(b) (BR 05) said that when he agreed to let § 87(2)(b) stay at his apartment, he went to Harlem Tavern Bar where she was drinking to pick her up. Upon arriving back at § 87(2)(b) s apartment, § 87(2)(b) continued to drink red wine, even though § 87(2)(b) suggested she go to bed to “sober up.”

EMT § 87(2)(b) (BR 25) and EMT § 87(2)(b) (BR 26) did not recall this incident.

According to Lt. Caleb (BR 08), when she entered the apartment, § 87(2)(b) was pacing throughout the apartment and yelling incoherent statements, such as that she lived at the apartment, but could not provide any documentation proving so. Lt. Caleb tried to discern what transpired between § 87(2)(b) and § 87(2)(b) but § 87(2)(b) was unable to provide a narrative regarding the incident. Lt. Caleb smelled alcohol on § 87(2)(b) and noticed foam around her mouth, which made her believe § 87(2)(b) was intoxicated and may have taken amphetamines or another drug.

After approximately 30 minutes of trying to speak with § 87(2)(b) regarding what happened with § 87(2)(b) Lt. Caleb called EMS. When the EMT § 87(2)(b) and EMT § 87(2)(b) arrived, they spoke to § 87(2)(b) and asked if she “took anything,” which irritated § 87(2)(b) § 87(2)(b) Lt. Caleb and the EMTs went into the hallway, where they discussed that § 87(2)(b) was likely “on something” because she was foaming at the mouth, smelled like alcohol, and yelled incoherent statements.

PO Kendall (BR 06), PO Sneed (BR 07), and PO Giarro (BR 10) were consistent in their statements that § 87(2)(b) was visibly intoxicated.

In § 87(2)(b) s 911 call (BR 11-12), § 87(2)(b) originally tells the dispatcher that she lives with § 87(2)(b) but then says, “I have no way to get home.” When the dispatcher asks if § 87(2)(b) is at § 87(2)(b) s house, § 87(2)(b) says, “This is my home.”

The AIDED (BR 15) report prepared by PO Kendall indicates that § 87(2)(b) was under suspected influence of alcohol. The “details” section of the report also notes that § 87(2)(b) was intoxicated.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

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An officer must take into custody and remove to the hospital in an ambulance “any person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which an officer reasonably believes is likely to result in serious injury to himself or others.” NYPD Patrol Guide Procedure 221-13 (BR 16).

Upon responding to an incident where a person is sick or injured, officers should request an ambulance and cooperate with ambulance/hospital personnel in every reasonable manner. NYPD Patrol Guide Procedure 216-01 (BR 27).

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Force: Police Officer Frank Giarro tightly handcuffed § 87(2)(b)

§ 87(2)(b) (BR 04) said that once inside the apartment, the officers told her she had to go to the hospital. § 87(2)(b) refused to go and asked the officers and EMTs to leave the apartment, but they refused to do so. PO Giarro placed § 87(2)(b) in handcuffs and told her she was not under arrest, but was going to be taken to the hospital for her “own good.” § 87(2)(b) began to scream and move her hands to try and take the cuffs off, as she was panicked. PO Giarro then tightened § 87(2)(b) s handcuffs. § 87(2)(b) did not complain of wrist pain to PO Giarro or any other officer.

EMT § 87(2)(b) (BR 25) and EMT § 87(2)(b) (BR 26) did not recall this incident.

According to PO Giarro (BR 10), he and Lt. Caleb decided together to handcuff § 87(2)(b) for her own safety, as she was refusing to comply with the EMTs that she had to go to the hospital. At no point during the incident were § 87(2)(b) s handcuffs tightened.

Lt. Caleb (BR 08) said that for approximately 10 to 15 minutes, she explained to § 87(2)(b) that the EMTs were at the apartment to help her. § 87(2)(b) continued to refuse to go to the hospital, and at that point she and PO Giarro handcuffed § 87(2)(b) § 87(2)(b) stiffened her body, but because she was small, Lt. Caleb and PO Giarro did not have difficulty handcuffing § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation (F) Force: Lieutenant Senta Caleb used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Frank Giarro used physical force against § 87(2)(b)

In § 87(2)(b)'s telephone statement (BR 21), she said that officers used force against her by grabbing her arms and "throwing" her onto the stretcher when they tried to remove her to the hospital. As a result, § 87(2)(b) hit her head on the stretcher. § 87(2)(b) did not claim any injuries during her telephone statement.

In her sworn statement (BR 04), § 87(2)(b) said that after she was handcuffed, two officers, identified by the investigation as PO Giarro and Lt. Caleb, picked her up by her upper body and placed her on the stretcher, which caused bruising to her upper arms.

EMT § 87(2)(b) (BR 25) and EMT § 87(2)(b) (BR 26) did not recall this incident and specifically did not recall any officer using physical force against § 87(2)(b).

According to both Lt. Caleb (BR 08) and PO Giarro (BR 10), when § 87(2)(b) refused to sit in the chair the EMTs brought with them, they grabbed § 87(2)(b)'s shoulders and forcibly sat her in the chair, after which § 87(2)(b) started kicking the EMTs. § 87(2)(b) was never lifted off the ground. Lt. Caleb said that in response to § 87(2)(b) kicking, the EMTs tied a sheet around § 87(2)(b)'s legs to prevent her from kicking.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

Further, when police officers responded to § 87(2)(b) later in the day, which will be discussed in further detail below, § 87(2)(b) consistently stated that her injuries were a result of § 87(2)(b) assaulting her. The AIDED report prepared by Police Officer Semper-Martinez of the 28th Precinct at the time notes that § 87(2)(b) said "her boyfriend threw her around the apartment before she called 911 causing bruises. C/v [sic] has bruises on her arms, chest, and leg" (BR 22)

§ 87(2)(g)

it is recommended that **Allegations F and G** be closed as **unfounded**.

Allegation (H) Force: Police Officer Keyana Kendall restricted § 87(2)(b)'s breathing.

§ 87(2)(b) (BR 04) said that once she was on the stretcher, PO Kendall approached her and placed one of his arms around the back of her neck, while also placing his other hand

around § 87(2)(b)'s mouth, fully covering it. PO Kendall bent § 87(2)(b) forward, pressing her head against his chest, which made it difficult for her to breathe. § 87(2)(b) yelled, "I cannot breathe," several times. The rest of the officers then told PO Kendall to release § 87(2)(b) and he did so.

§ 87(2)(b) (BR 05) said that when § 87(2)(b) exited the apartment, PO Kendall, PO Sneed, Lt. Caleb, and the EMTs tried to place her in a stretcher. § 87(2)(b) punched and kicked at the officers and EMTs. Seconds later, the EMTs placed § 87(2)(b) in the stretcher and strapped her upper body and legs to the stretcher. § 87(2)(b) did not see an officer cover § 87(2)(b)'s mouth or hear § 87(2)(b) say she could not breathe.

Neither EMT § 87(2)(b) (BR 25) nor EMT § 87(2)(b) (BR 26) recalled the incident and specifically did not recall an officer placing his hand over § 87(2)(b)'s mouth or § 87(2)(b) stating that she could not breathe. EMT § 87(2)(b) said that he would have remembered if an officer in any way restricted an individual's breathing.

According to PO Kendall (BR 06), when § 87(2)(b) came out of the apartment, she was strapped to a "half wheelchair" device brought by EMS. PO Kendall denied placing his hand over § 87(2)(b)'s mouth and restricting her breathing or otherwise have any physical contact with her once she was placed into the "half wheelchair."

Lt. Caleb (BR 08) did not see PO Kendall place his hand over § 87(2)(b)'s mouth and did not hear § 87(2)(b) say, "I can't breathe." § 87(2)(b) was never placed in a position in which she would not be able to breathe. PO Bonifacio (BR 09) and PO Giarro (BR 10) also did not see any officer make physical contact with § 87(2)(b) on the stretcher.

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **unfounded**.

Allegation (I) Abuse of Authority: Police Officer Keyana Kendall searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) (BR 04) did not allege that she was searched during this incident.

§ 87(2)(b) (BR 05) said that after § 87(2)(b) was removed to the hospital, he was permitted to go back inside his apartment. § 87(2)(b) looked inside § 87(2)(b)'s purse, but did not find his keys or wallet inside. PO Kendall checked the pockets of § 87(2)(b)'s coat and found § 87(2)(b)'s wallet, credit cards, and keys. PO Kendall told § 87(2)(b) he could press criminal charges against § 87(2)(b) if he wished, and § 87(2)(b) responded that he would do so in the morning. PO Kendall then left the location.

According to PO Kendall (BR 06), he went back inside § 87(2)(b)'s apartment, which was very neat, to look for § 87(2)(b)'s keys. PO Kendall told § 87(2)(b) to remain to the side of the hallway.

PO Kendall looked around the apartment for things which were "out of place." § 87(2)(b) saw a woman's long gray sweater either near or inside the bedroom. PO Kendall picked it up and the sweater was heavy. PO Kendall reached inside one of the sweater pockets and found § 87(2)(b)'s keys. PO Kendall then reached inside the other pocket and found § 87(2)(b)'s identification, credit cards, debit cards, and business cards. PO Kendall reached inside the second

you are going down with them. I am going to get you for grand larceny,” and told § 87(2)(b) that officers found § 87(2)(b)'s credit cards in her pockets. § 87(2)(b) responded that she could file criminal charges against § 87(2)(b) at any later time.

Sgt. Coppola called § 87(2)(b) an “idiot” and said she was “as dumb as they come.” § 87(2)(b) was handcuffed. Officers brought § 87(2)(b) downstairs in handcuffs as well. § 87(2)(b) and § 87(2)(b) were taken to the 34th Precinct stationhouse.

§ 87(2)(b) (BR 05) said that at approximately 7:50 a.m., Sgt. Coppola and another officer arrived at his apartment to retrieve § 87(2)(b)'s belongings. § 87(2)(b) let the officers inside. § 87(2)(b) explained what happened earlier in the morning. Sgt. Coppola told § 87(2)(b) that § 87(2)(b) wanted to press criminal charges against him for assaulting her. § 87(2)(b) insisted that he did not assault § 87(2)(b). Sgt. Coppola explained that because § 87(2)(b) said he assaulted her, they had to arrest him. § 87(2)(b) said he wanted to press criminal charges against § 87(2)(b) for stealing his credit cards. § 87(2)(b) was placed into handcuffs and brought to the lobby. § 87(2)(b) did not hear Sgt. Coppola call § 87(2)(b) an “idiot” or “dumb.”

Sgt. Coppola (BR 17) had no recollection of this incident and attempts to refresh his recollection were unsuccessful.

PO Semper-Martinez (BR 18) said that upon arrival, § 87(2)(b) informed her that she wanted to get her belongings from Apartment § 87(2)(b). § 87(2)(b) assaulted her the night before, and officers arrived the night before. § 87(2)(b) claimed she lived at the apartment, but her driver's license and passport both listed a different address. An attendant at the front desk told PO Semper-Martinez that § 87(2)(b) “comes in and out” but does not live in the building. PO § 87(2)(b) saw small bruises on § 87(2)(b)'s arms. § 87(2)(b) never said that the bruising was a result of her interaction with officers the night before.

PO Semper-Martinez called PO Kendall, who she knew was assigned to Sector B during the midnight tour, regarding the incident the night before. PO Kendall told PO Semper-Martinez that § 87(2)(b) had been intoxicated, barricaded herself inside the apartment and refused to let § 87(2)(b) inside, and was ultimately removed to the hospital. PO Kendall also told PO Semper-Martinez that § 87(2)(b) had § 87(2)(b)'s credit cards, but PO Semper-Martinez did not remember if PO Kendall specified how and where he found the credit cards.

After speaking to PO Kendall, PO Semper-Martinez called Sgt. Coppola to the scene. When Sgt. Coppola arrived, he and PO Semper-Martinez went upstairs to speak to § 87(2)(b). § 87(2)(b) said he did not assault § 87(2)(b) and that she had taken his credit cards. The officers told § 87(2)(b) that because § 87(2)(b) was accusing him of assault, he was going to be arrested. The officers placed § 87(2)(b) in handcuffs and brought him down to the lobby.

In the lobby, § 87(2)(b) was also placed under arrest for § 87(2)(b). Sgt. Coppola explained to § 87(2)(b) that she and § 87(2)(b) were cross complainants. PO Semper-Martinez did not hear Sgt. Coppola say, “If you are going to press charges against § 87(2)(b) and my men go down, you are going down with them. I am going to get you for grand larceny,” or otherwise threaten to arrest § 87(2)(b). PO Semper-Martinez did not hear Sgt. Coppola call § 87(2)(b) an “idiot,” “dumb,” or use any other discourteous language.

§ 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 03).
- PO Kendall has been a member of service for 11 years and has been a subject in seven prior CCRB complaints and 12 allegations, of which one was substantiated.
 - 201809425 involved a substantiated allegation of offensive language against PO Kendall. The Board recommended formalized training and the NYPD imposed instructions.
 - § 87(2)(g)
- Lt. Caleb has been a member of service for 14 years and has been a subject in four prior CCRB complaints and four allegations, none of which was substantiated. § 87(2)(g)
- PO Giarro has been a member of service for seven years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Bonifacio has been a member of service for six years and has been a subject in five prior CCRB cases and seven allegations, none of which was substantiated. § 87(2)(g)
- Sgt. Coppola has been a member of service for 18 years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal injury and seeking \$375,000 as redress (BR 01). As of November 30, 2018, § 87(2)(b)'s case was adjourned twice, and there is no 50-H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date